

Mutual Non-Disclosure Agreement

Two-way confidentiality for business discussions and service delivery

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Issued: July 02, 2026

Effective Date: _____

Parties and Effective Date

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of the Effective Date by and between BVTech LLC, a Texas limited liability company ("Provider" or "BVTech"), with its principal office at 1902 Kirby Rd, El Campo, TX 77437, and the client identified on the signature page ("Client"). Provider and Client are each a "party" and together the "parties."

Client Legal Name: _____

Client Address: _____

Client Primary Contact / Email: _____

Purpose

The parties wish to explore and/or conduct a business relationship concerning IT and security services (the "Purpose") and may disclose Confidential Information to each other in connection with the Purpose.

Definition of Confidential Information

"Confidential Information" means any non-public information disclosed by a party ("Discloser") to the other ("Recipient"), whether oral, written, electronic, or observed, that is designated confidential or that a reasonable person would understand to be confidential, including: business and financial information, pricing, customer lists, network architecture, credentials, security configurations and vulnerabilities, source code, and personal information. Confidential Information includes the existence and terms of the parties' discussions.

Obligations

- 1 Use Confidential Information solely for the Purpose.
- 2 Protect it with at least reasonable care and the same care Recipient uses for its own confidential information.
- 3 Disclose it only to employees, contractors, and advisors with a need to know who are bound by confidentiality obligations at least as protective.
- 4 Not reverse engineer, decompile, or derive the composition of any disclosed materials.
- 5 Promptly notify Discloser of any unauthorized use or disclosure and cooperate to mitigate.

Exclusions; Compelled Disclosure

Obligations do not apply to information that: (a) is or becomes publicly available without breach; (b) was rightfully known to Recipient before disclosure; (c) is independently developed without use of Confidential Information; or (d) is rightfully obtained from a third party without restriction. If Recipient is compelled by law to disclose, it shall (where lawful) give prompt notice and reasonable cooperation so Discloser may seek protective treatment, and disclose only what is legally required.

Term; Return; Remedies

This NDA is effective for three (3) years from the Effective Date; confidentiality obligations survive for five (5) years after disclosure, and for trade secrets, for as long as they remain trade secrets under the Texas Uniform Trade Secrets Act. Upon written request, Recipient shall return or destroy Confidential Information (certifying destruction), except archival copies retained under standard backup or legal-hold practices, which remain subject to this NDA. The parties agree that breach may cause irreparable harm for which monetary damages are inadequate; Discloser is entitled to seek injunctive relief without posting bond, in addition to other remedies. No license or ownership rights are granted. Neither party is obligated to proceed with any transaction.

General Provisions

Governing Law and Venue

This NDA shall be governed by and construed in accordance with the laws of the State of Texas, without regard to its conflict of laws principles. Exclusive venue for any dispute arising out of or relating to this NDA shall lie in the state or federal courts located in Wharton County or Bexar County, Texas, and each party consents to the personal jurisdiction of such courts.

Dispute Resolution

Before initiating litigation, the parties shall first attempt in good faith to resolve any dispute through direct negotiation between authorized representatives for a period of thirty (30) days. If unresolved, the parties agree to non-binding mediation in Texas with a mutually agreed mediator, with costs shared equally, prior to filing suit. Nothing in this section prevents either party from seeking injunctive relief to protect confidential information or intellectual property.

Attorneys' Fees

In any action to enforce this Agreement, the prevailing party shall be entitled to recover its reasonable attorneys' fees and costs as permitted under Chapter 38 of the Texas Civil Practice and Remedies Code.

Force Majeure

Neither party shall be liable for delay or failure to perform (other than payment obligations) due to causes beyond its reasonable control, including acts of God, natural disasters, utility or internet backbone failures, cyber-attacks by third parties despite commercially reasonable safeguards, epidemics, government action, or labor disputes, provided the affected party gives prompt notice and uses reasonable efforts to mitigate.

Assignment

Neither party may assign this Agreement without the prior written consent of the other, not to be unreasonably withheld, except to a successor in interest by merger, acquisition, or sale of substantially all assets, upon written notice.

Notices

Notices must be in writing and are deemed given when delivered personally, by certified mail (return receipt requested), by nationally recognized courier, or by email with confirmed receipt, to the addresses stated on the signature page or as updated in writing.

Severability; Waiver; Entire Agreement

If any provision is held unenforceable, it shall be modified to the minimum extent necessary and the remainder shall continue in full force. No waiver of any breach is a waiver of any other breach. This Agreement, together with its exhibits, schedules, SOWs, and addenda, constitutes the entire agreement between the parties regarding its subject matter and supersedes all prior discussions. Amendments must be in a writing signed by both parties. This Agreement may be executed in counterparts, and electronic signatures (including via a reputable e-signature platform) are valid and binding under the Texas Uniform Electronic Transactions Act (Tex. Bus. & Com. Code Ch. 322).

Independent Contractors

The parties are independent contractors. Nothing herein creates a partnership, joint venture, agency, or employment relationship.

IN WITNESS WHEREOF, the parties have executed this document as of the Effective Date.

BVTech LLC**Client**

Signature: _____

Signature: _____

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____